

TENTATIVE RULINGS FOR June 23, 2026
Department R-14
BEFORE THE HONORABLE TONY RAPHAEL
(909) 285-3717

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a “Stipulation and Order For Appointment of Official Reporter Pro Tempore” to the court in the form found on the Court’s website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department R-14 at SScott@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

PLEASE REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT’S WEBSITE.

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court’s website after 3:00 p.m. the day before the hearing at <https://www.sb-court.org/divisions/civil/civil-tentative-rulings>.

You may appear in person or by remote appearance at the hearing. (See www.sb-court.org/general-information/remote-access) If you do not have Internet access you may obtain the tentative ruling by calling the department at 909-285-3717. If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 p.m. the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling and be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

LEWIS WILLIAMS, an individual;

v.

RUSSELL HOMAN, an individual; GINA HOMAN, an individual; SOLOMON RAZO, an individual; TRUVIEW INK & GRAPHIC SUPPLY INC., a California corporation; and DOES 1 through 10, inclusive.

RUSSELL HOMAN, an individual; GINA HOMAN, an individual; SOLOMON RAZO, an individual; TRUVIEW INK & GRAPHIC SUPPLY INC., a California corporation;

v.

LEWIS WILLIAMS, an individual; and ROES 1 through 10.

CIVSB2312548

PROCEDURAL/FACTUAL BACKGROUND

Before the Court is a motion by the Plaintiff seeking to appoint a Receiver to take possession of, manage, preserve the assets, business, records and affairs of TruView Ink & Graphic Supply, Inc.

This litigation concerns the claims of mishandling of a business. On June 1, 2023, Plaintiff Lewis Williams (“Plaintiff” or “Williams”) filed his Complaint against Defendants Russell Homan (“Russell”),¹ Gina Homan (“Gina”) [Russell and Gina collectively referred to as “Homan”], Solomon Razo (“Razo”), and TruView Ink & Graphic Supply Inc. (“TruView”,

¹ Since the Homan defendants have the same last name, first names are used for the purpose of clarity. No disrespect is intended.

collectively “Defendants”). The Complaint pleads seven (7) causes of action: (1) Breach of fiduciary duties against Russel and Razo; (2) Fraud against Russel and Razo; (3) Negligent misrepresentation against Russel and Razo; (4) Conversion against all; (5) Breach of the implied covenant against Russel and Razo; (6) Constructive trust against all; and (7) Accounting against all.

The Complaint alleges that Williams, Russell, and Razo are shareholders of TrueView. Williams holds a minority share. Russell is the Chief Executive Officer, Gina is the Chief Financial Officer, and Razo is the Secretary of TruView (Comp., ¶¶ 1, 14-16). Williams discovered that Russell and Razo have diverted funds from TruView to another company they control. They used TruView’s assets for their personal and family use. They inflated its expenses. When Williams inquired about TruView, Russell and Razo would provide false information. They further refused his requests for copies of corporate filings, resolutions, board minutes, tax filings, and financial records (Comp., ¶¶ 19-22, 24-26).

On August 9, 2023, Defendant TruView answered asserting a general denial and twenty-five (25) affirmative defenses.

Defendants motion for leave to file a cross-complaint was granted by the Court on July 10, 2025. All Defendants filed an answer to the Complaint on July 21, 2025 consisting of a general denial and twenty-five (25) affirmative defenses. The Cross-Complaint was also filed on July 21, 2025, against Plaintiff Williams and asserted causes of action for: (1) breach of fiduciary duty; (2) fraud; (3) negligent misrepresentation; (4) conversion; and (5) breach of the implied covenant of good faith and fair dealing. The cross-complaint asserts Williams improperly diverted the funds of TruView; inflated and misrepresented his investment and control in

TruView in financial records and tax returns; and is attempting to obtain money and dividends which they are not entitled to as minority shareholders. (X-Comp., ¶ 11.)

On August 28, 2025, Plaintiff/Cross-Defendant Williams answered the cross-complaint with a general denial asserting thirty-nine (39) affirmative defenses. On December 3, 2025, this Court so-ordered the parties' stipulation to continue the trial until December 28, 2026.

On February 10, 2026, Plaintiff filed this present motion for the appointment of a receiver together with his declaration and the declaration of Sam S. Yebri, Esq. in support.

On April 7, 2026, Defendants filed an opposition.

On April 13, 2026, Plaintiff filed a reply.

The declarations of Russell Homan and John R. Setlich, Esq., supporting the opposition, were filed on April 14, 2026.

The Court held a hearing on April 20, 2026 and continued the matter to allow Plaintiff to file a response to the late filing of Defendant's declaration dated April 14, 2026. The matter was continued to June 23, 2026.

On April 24, 2026, Plaintiff filed a response to the Russell Homan declaration.

DISCUSSION

Statement of Law

Receivers are agents of the court and may be appointed only where authorized by statute. (*Marsch v. Williams* (1994) 23 Cal.App.4th 238, 246.) The moving papers must allege facts establishing one of the statutory grounds for receivership. (*Miller v. Oliver* (1917) 174 Cal. 407, 410.)

Code Civ. Proc., § 564, entitled "Cases in which appointment of receiver is authorized", provides:

(b) A receiver may be appointed by the court in which an action or proceeding is pending, or by a judge of the court, in the following cases:

(1) In an action by a vendor to vacate a fraudulent purchase of property, or by a creditor to subject any property or fund to the creditor's claim, or between partners or others jointly owning or interested in any property or fund, on the application of the plaintiff, or of any party whose right to or interest in the property or fund, or the proceeds of the property or fund, is probable, and where it is shown that the property or fund is in danger of being lost, removed, or materially injured...

(6) Where a corporation is insolvent, or in imminent danger of insolvency, or has forfeited its corporate rights...

(9) In all other cases where necessary to preserve the property or rights of any party.

Because the remedy of receivership is so drastic in character, "Ordinarily, if there is any other remedy, less severe in its results, which will adequately protect the rights of the parties, a court should not take property out of the hands of its owners." (*Alhambra- Shumway Mines, Inc. v. Alhambra Gold Mine Corp.* (1953) 116 Cal.App.2d 869, 873.) "California rigidly adheres to the principle that the power to appoint a receiver is a delicate one which is to be exercised sparingly and with caution." (*Morand v. Superior Court* (1974) 38 Cal.App.3d 347, 351.) "It is said by the state's courts that the appointment of a receiver is 'an extraordinary and harsh,' and 'delicate,' and 'drastic,' remedy to be used 'cautiously and only where less onerous remedies would be inadequate or unavailable....' " (*Ibid.*) "[A] receiver should not be appointed where the desired result can be obtained by less stringent means calculated to protect the rights of all parties." (*Dabney Oil Co. v. Providence Oil Co.* (1913) 22 Cal.App. 233, 239.) "Where an injunction will protect all the rights to which the applicant for the appointment of a receiver appears to be entitled, a receiver will not be appointed." (*Ibid.*)

"The rule is established that the appointment of a receiver rests largely in the discretion of the trial court and that its action in appointing a receiver or its refusal of an application for the appointment of such an officer will not be disturbed in the absence of a showing that the court's discretion has been abused." (*City & County of S.F. v. Daley* (1993) 16 Cal.App.4th 734, 744.) "[T]he availability of other remedies does not, in and of itself, preclude the use of a

receivership.” (*Id.*, at 745.) “Rather, a trial court must consider the availability and efficacy of other remedies in determining whether to employ the extraordinary remedy of a receivership.”

(*Id.*)

Declarations in support of Opposition filed on April 14, 2026. John Setlich, Esq. filed a declaration stating the declaration of Russell Homan was supposed to be filed with the opposition, but due to “an internal staff error, they failed to file the declaration with the other responsive pleadings.”

The Russell Homan declaration is signed on April 14, 2026. Russell states that he is an owner and President of TruView Ink & Graphic Supply, Inc. He has been actively involved in the day-to-day operations of TruView since its formation and he oversees the company’s business operations, finances and vendor relationships. TruView is an active California corporation in good standing with the California Secretary of State and is currently operating in the ordinary course of business. His declaration states in part:

- 5) TruView is solvent. The company maintains active bank accounts, generates revenue through its ongoing business operations, and continues to meet its ordinary business obligations, including vendor payments and operational expenses, as they come due.
- 6) TruView employs personnel and continues to service its customers without interruption. The company’s operations are stable and ongoing.
- 7) TruView has not transferred any assets outside the ordinary course of business within the past twelve months. All expenditures and payments made by the company are for legitimate business purposes.
- 8) There are no plans to liquidate, dissolve, wind down, or sell any substantial assets of TruView.
- 9) TruView maintains its corporate and financial records in the ordinary course of business, including financial statements, bank records, and tax-related documents. These records exist and are available for review.
- 10) Plaintiff has never participated in the day-to-day operations of TruView and has not been involved in managing the company’s business affairs.
- 11) Plaintiff did not attend board meetings and did not take an active role in the governance or management of TruView and has not been involved in managing the Company’s business affairs.

12) At all relevant times, Plaintiff had access to TruView's books and records. Plaintiff's decision not to review those records was not due to any refusal or prevention by Defendants.

13) TruView is prepared to comply with its discovery obligations in this action and to participate in the Court-ordered appraisal and mediation process.

14) TruView intends to continue operating its business in the ordinary course while this litigation proceeds.

15) There is no current threat that TruView's assets are in danger of being lost, removed or materially injured.

16) Appointment of a receiver is a drastic and extraordinary remedy and is not applicable under these circumstances, therefore I hereby request that Plaintiff's motion for the appointment of a Receiver be denied and the parties proceed with the current stipulation to retain a financial appraiser and mediate the dispute prior to trial.

Plaintiff's Declarations in response dated April 24, 2026. Plaintiff argues the Court should disregard the later opposition papers filed after the reply. The motion and evidence the Plaintiff submits demonstrated:

- (i) Despite the fact that TruView generated \$27,788,954 in gross receipts and \$7,000,835 in profits from 2017 to 2024, TruView paid no taxes whatsoever nor did the other defendants (R. Homan, G. Homan, and S. Razo) who are the majority owners of TruView and who paid virtually no personal income taxes during that time period (raising serious questions of tax fraud);
- (ii) Despite these substantial revenues and profits, TruView did not provide any distributions whatsoever to Plaintiff, who owns 30% of TruView;
- (iii) TruView has failed, and continues to fail, to provide Plaintiff any K-1 tax documents despite the fact that Plaintiff owns 30% of TruView (which makes it impossible for Plaintiff to file accurate personal tax returns);
- (iv) Under Defendants' mismanagement, TruView admitted to intentionally diverting TruView funds to pay the expenses of a separate entity called "TruSport" in which Plaintiff has no ownership interest but is instead owned and managed by Defendants R. Homan, G. Homan, and
- (v) Defendants allegedly defrauded another investor in TruView (Casey Fein), which resulted in a lengthy and expensive litigation against Defendants and Plaintiff;
- (vi) TruView failed to make corporate filings required by California law, which resulted in TruView's suspension by California's Secretary of State in 2021. (See Williams Decl. ISO Motion.)

Nothing in the Homan declaration rebuts these facts. The Homan declaration attaches no documents or correspondence to show that TruView ever held any board meetings or provided any financial or corporate information to Plaintiff.

Analysis

Neither party disputes a receiver can be appointed in this type of action. This case was commenced in 2023 and the parties, in December 2025, stipulated to continue trial from January 2026 to December 2026. Plaintiff's main complaint appears to be that TruView and Defendants have not responded to him regarding retaining a financial appraiser/accountant. (See footnote 1 on page 1 of the P&A and pp. 13-14 of the motion. "Defendants completely ignored nearly a dozen emails and phone calls...") (Footnote #1.)

The December 4, 2025, stipulation to continue the trial stated in part:

WHEREAS further discovery needs to be conducted by the Parties, including expert forensic and financial discovery.

WHEREAS the Parties have agreed to jointly retain a financial appraiser to evaluate the fair market value of TRUVIEW INK & GRAPHIC SUPPLY INC. and Plaintiff's interests therein and other issues, and to mediate this dispute prior to trial, and are meeting and conferring about said joint appraisal and the mediation.

WHEREAS the Parties want to focus their efforts over the next sixty (60) days on attempting to resolve this matter through settlement and/or mediation, rather than trial preparation.

WHEREAS the Parties have met and conferred regarding their pending discovery, the trial date, and all trial-related deadlines, and agree that a relatively brief one-time continuance of the trial date, including the related Final Settlement Conference and all other trial-related deadlines, will preserve judicial resources and allow the Parties to meaningfully engage in further settlement discussions and potentially resolve this matter without further litigation or court intervention.

The current trial is in approximately six months. Sixty days from the December stipulation had passed when Plaintiff filed this motion. (12/4/25 to 2/10/26.)

There is evidence that the assets of TruView were utilized (money) to pay the rent of another company in 2020. (See Yerbi Decl., ¶ 7, Ex. H, Depo, of Russell at 128.) This was known by Plaintiff in November 2022, prior to this case being commenced. Plaintiff admits he found out about the information from the *Fein* lawsuit, in which he was a Defendant and which settled in April 2023. (Williams Decl., ¶ 15.) Mr. Yerbi's declaration additionally states:

9. Since the filing of the lawsuit, Defendants have repeatedly ignored and flouted their discovery obligations; as a result, this Court has twice sanctioned Defendants and their counsel for discovery violations (with a third motion to compel and request for sanctions currently pending for hearing on March 12, 2026).

However, each discovery motion requires sanctions as a default premise, and if Defendants really have not been providing the required discovery, other motions, like ones for terminating sanctions, would be more appropriate than a motion to appoint a receiver.

There appears to be, according to the chart in Yerbi Decl., ¶ 10, and motion at p. 6, a chart showing gross receipt of sales and gross profit, but this is even more reason for the stipulated financial accounting. There are inconsistencies in the declarations. Mr. Williams said he has never been provided access to financial documents (William Decl., ¶¶ 9-10), while Mr. Russell Homan states that Plaintiff has access to documents. (See Homan Decl., ¶¶ 9-12.) Mr. Homan states TruView is an active California corporation in good standing. (Homan Decl., ¶ 4.)

The Court DENIES the request for receiver without prejudice. It does not appear that anything right now is different from when this case was commenced in 2023, current or imminent. **The Court ORDERS the parties to meet and confer regarding retaining a financial appraiser as mentioned in the December 4, 2025 so-ordered stipulation. The parties shall have a financial appraiser in place and working by July 31, 2026; the Court will set OSC hearing for August 3, 2026. The Court also ORDERS the parties to meet and confer regarding the mediation and have one reserved by July 31, 2026.**

CONCLUSION

Based on the foregoing, the Court DENIES the request for receiver WITHOUT PREJUDICE. The Court ORDERS the parties to meet and confer on retaining a financial appraiser as mentioned in the December 4, 2025 so-ordered stipulation and to have the financial

appraiser in place and working by July 31, 2026. **The Court also ORDERS the parties to meet and confer regarding the mediation and have one reserved by July 31, 2026.**

The Court hereby SETS an OSC Hearing re Status of Financial Appraiser and Status of Mediation for August 3, 2026 at 9:00 a.m.

Counsel for Defendants is ordered to provide notice.

TENTATIVE